and optimism about the role of the Supreme Court and high courts in protecting fundamental rights and preserving Indian democracy. There is a large body of work that extols the role of our constitutional courts in safeguarding us from the indiscretions and misadventures of Parliament and the government. This narrative is only partially true, and is often misleading. On several occasions, the courts have remained silent and failed to prevent these misadventures. On still other occasions, the courts have created, catalysed or contributed to these misadventures. This book includes many examples of circumstances in which courts have abdicated or misused their responsibility in this way.

Second, this book seeks to dispel the myth that courts have the 'final word' on all the questions that arise for their determination. Conventional wisdom dictates that while legislatures and governments enact legislation and make policy decisions, courts finally and decisively adjudicate on their constitutionality and legality. This paints a simplistic picture of what is, in practice, far more complicated and messy. Courts' decisions are better conceived as forming part of a broader socio-political landscape. Courts depend on the cooperation of other branches of government, as well as society at large, to ensure the entrenchment of (and compliance with) their judgements. As you will see, some of the judgements considered in this book have been deeply entrenched and have exerted their influence for decades. Others have simply never been implemented, or barely survived for weeks before being swiftly consigned to the archives.